

Predictive Influence of Law Library Resources in Reviewing of Cases: The Case of State and Federal High Courts in Port Harcourt and Enugu Metropolis

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ABSTRACT

This study examines the predictive influence of law library resources in reviewing cases within State and Federal High Courts in Port Harcourt and Enugu metropolis. Employing a survey research design, the population consisted of legal practitioners, law lecturers, law librarians, and law students, with a total sample size of 3,021. Mean score analysis was utilized to assess the responses collected through structured questionnaires. Findings reveal a significant positive influence of law library resources on case review processes, including enhancing thoroughness, improving quality, saving time, and providing invaluable support. However, discrepancies exist in the perceived dependency on resources among legal professionals and researchers. Moreover, challenges affecting the stocking of law libraries with relevant resources were identified, including insufficient funding, limited physical space, difficulties in accessing up-to-date publications, lack of awareness among decision-makers, copyright issues, and inadequate staffing. The study concludes that addressing these challenges, through increased funding, space optimization, improved access to publications, awareness campaigns, and staffing enhancements, is crucial for enhancing the effectiveness of legal research and practice in the studied courts.

1. Introduction

Courts are essentially, established to settle cases and other related matters among parties. This is a constitutional duty conferred on courts under the constitution of the Federal Republic of Nigeria, 1999 (as amended) it empowers the court as provided in **Section 6 (6)** shall extend to all matters between persons, or between government or authority and to any persons in Nigeria and to all actions and proceedings relating thereto, for the determination of any question as to the rights and obligations of that person. This means that courts are enjoined by the constitution to settle cases among parties in disputes.

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Inegbedion (2005) describes a case within our common law jurisdiction to mean judicially determined matter involving live issues brought before a court for judicial resolution, that where such a case has been resolved one way or the other, it becomes some form of precedent to be referred to subsequently either for academic research or for professional practice. Judicial precedent is a principle of law that both researchers in law and legal practitioners rely largely when a legal dispute arises. Inegbedion maintained that for the researcher, it assists in advancing the course of his research either for the purpose of supporting settled principles of law or to demonstrate that the case in question does not accord with the settled principle of law or precedent of earlier decisions

When this happens, the court is said to have erred in law or *per incuriam*. This Latin maxim refers to a judgment of a court which has been decided without reference to a statutory provisions or earlier judgments which could be relevant. The effect of such judgment is that it could lead to judicial contradictions. It is only a court of coordinate jurisdiction that may have the power to depart from earlier decision, may rely on the *per incuriam* doctrine to justify exercising such power. This means that whenever a previous court judgment that failed to pay attention to relevant statutory provisions or judicial precedents such court judgment is subject to be reviewed by legal scholars or higher court for judicial progress and development.

Case review is the process whereby a case that has been decided in court is reviewed or evaluated to ascertain the veracity of the judgment. This is done either to find out if the judgment is in line with a settled principle of law or that the judgment is at variance with a settled principle of law. If this occurs then there is the need for examination of the said judgment. Reviewing of case (s) by legal professionals or legal researchers depend largely on law library resources available and accessible in law libraries.

Law library resources comprise of wide range of items and services that support legal training and practice. The law library resources constitute of the personnel, print and non-print resources held in libraries meant to provide effective and efficient services to the law library patrons. The print resources cover various aspects of law ranging from law textbooks, journals, reference materials, statute, precedent books, law reports, government publications, etc, while non-print consists of information resources that requires the use of computer to access these include electronic journals, online databases and electronic books. The personnel include the law librarians, library officer, library assistants, etc.

The print and non-print resources are grouped into two namely; the primary sources which consist of Statutes, Acts, treaties, byelaws, law reports and other governmental agencies that are granted by the constitution to make laws in their field of operations while textbooks, journals, digest etc., help to explain and analyze primary sources for easy understanding of the law.

In law libraries, the primary and secondary sources of law are very important both in practice and training but in reviewing of case primary sources are the most relevant as they constitute the bedrock for reviewing of cases. They present the state of the law and not what the law ought to be as could be seen in secondary sources or books on law.

Alkali et al. (2019) remarked that law reports are central to the lawyer practice and are like the foundation of the administration of justice. Law reports provide accounts of all the cases argued and determined in the superior courts of records with the decisions and opinions reached upon

by the courts. **Alkali et al.** further maintained that law reports carry not only facts, issues and decisions, but also the legal principles upon which the judgment is predicated on. The importance of law library resources in reviewing cases cannot be overemphasized as a well-stocked library is a sine qua non for legal practice and legal research.

1.1 Objective of the Study

The study will be guided by the following;

- (1) To ascertain the influence of law library resources in reviewing of cases.
- (2) To find out if the reviewing of cases by legal professionals and researchers largely depends on resources available and accessible.
- (3) To identify the problems affecting stocking of law libraries with relevant legal resources.

2. Literature Review

There are mass writings and data currently available on this study. Interestingly each writing and data points to salient issues. **Aname (2010)** documented that the law library information content is the engine that runs the legal machine, vibrates and propel the legal system and energizes the legal profession. It is in view of this that **Ainoko (2016)** depicted that law libraries like any other special library are repositories of the legal resources which have grown over the years at an unprecedented pace, aimed at providing information services to the profession both at study and practice. The role of law library resources in the reviewing of cases has evolved significantly, particularly with the growing use of digital platforms and electronic databases. Access to comprehensive and up-to-date legal resources, including case law, statutes, and academic journals, has been shown to enhance the legal reasoning and decision-making processes of legal professionals (Adegoke, 2021; Adewumi & Olanrewaju, 2020). Law libraries provide critical support for practitioners by offering not only traditional resources such as legal texts and case law compilations but also modern digital tools that facilitate efficient case analysis. The study of case law is particularly essential in jurisdictions like Nigeria, where past rulings and interpretations guide current decisions. Recent studies, such as those by **Okpala (2020)** and **Ejiofor and Akpan (2022)**, have highlighted the importance of law library resources in fostering a deeper understanding of legal precedents, helping legal professionals strengthen their arguments and predict case outcomes with greater accuracy. Furthermore, the presence of reliable legal databases and tools like **Westlaw, LexisNexis**, and other electronic legal research platforms increasingly influences the efficiency with which cases are reviewed, reducing dependency

on traditional manual searches and improving legal research outcomes.

The second objective of the study is to examine whether the reviewing of cases by legal professionals largely depends on the accessibility and availability of legal resources. This is a key issue in the Nigerian context, where limited access to comprehensive legal databases, especially in remote areas, can hinder the effective review of cases. Studies have shown that legal professionals in regions

E. Owushi & O. J. Anyalebechi
82 *International Journal of Knowledge Content Development & Technology* Vol.15, No.3, 79-90 (September, 2025)
with better library resources have more efficient access to relevant legal materials, which in turn

Adv Chimdike et Faithful

affects their ability to engage with case law comprehensively (Sulaimon & Akinlabi, 2021). The accessibility of such resources is not only influenced by physical access to library facilities but also by the availability of digital tools and online databases that can be accessed remotely. Research by Olawale et al. (2023) suggests that the integration of digital resources into law libraries has enhanced accessibility for legal researchers, particularly those in underserved regions. However, there are notable disparities in resource availability between different regions of Nigeria, with some areas, such as Port Harcourt and Enugu, being better equipped than others. This inequality in access to legal resources influences the overall effectiveness of legal professionals in reviewing cases and making informed decisions. Therefore, the relationship between resources and case review is complex, involving factors such as resource quality, accessibility, and regional disparities in legal infrastructure. The third objective of the study is to identify the problems affecting the stocking of law libraries with relevant legal resources. A critical issue faced by many law libraries, especially in Nigeria, is inadequate funding and resource allocation. According to a study by Olamide and Ijiyemi (2022), many law libraries in Nigerian universities and courts lack the necessary funding to update their collections regularly, resulting in outdated resources that fail to meet the demands of legal practitioners and researchers. Inadequate funding is compounded by poor infrastructure and the lack of trained personnel capable of managing legal collections effectively. This gap has been identified as one of the primary challenges in stocking law libraries with resources that are relevant to the needs of the legal community (Akintoye & Olatunji, 2020).

Legal professionals often face difficulties in accessing newer case law databases or journals due to licensing restrictions or lack of internet connectivity in certain regions. Adebayo and Balogun (2021) note that although digital resources are increasingly important, the lack of consistent internet access in some Nigerian law libraries exacerbates the problem. Additionally, the rapid growth of new legal information technologies and the corresponding demand for continuous training of library staff to manage these resources add another layer of complexity to maintaining well-stocked law libraries. These problems necessitate the formulation of strategies that address both funding and technological limitations to ensure that law libraries can meet the evolving needs of the legal community. Stressing on the importance of law library resources, Alkali et al. (2019) opined that law library resources are essential for the study and practice of law by the students of law and legal practitioners, and this is why they often spend enormous time in law library for research in view of the fact that research is indispensable for their success as students and practitioners hence the importance of law library. They further maintained that the progress and productivity of any law library depends on the availability of facilities and equipment and the utilization of legal information resources. To achieve this Salihu (2023) averred that librarians working in law /court libraries must therefore ensure that they do not only acquire relevant legal information resources for their users but also provide a mechanism through which users can easily access and use legal information to facilitate research. It is against this background that Joseph and Urhiewhu (2016) opined that academic law libraries are at the forefront of providing information services to their respective communities which consists of students, lecturers and researchers in order to support their teaching, learning and research needs.

It is on this note that Ogunwumiju (1996) that remarked that if the rule of stare decisis which

binds a lower court to follow willy nilly the legal principles and reasons laid down by superior courts of record cannot be followed if the collections of law libraries are inadequate and archaic. **Aname (2010)** noted that within the organizational environment the law library primary role is to provide the parent or establishing body resources and facilities for teaching, research and practice. The author further maintained that law library updates changes in law, provides conducive reading environment for research in law and provides ICT facilities to improve and complement existing resources.

Despite the importance of law library resources to the legal professionals, **law libraries in Nigeria** are faced with a lot of challenges ranging from lack of autonomy of academic law library. **Alkali et al. (2019)** depicted that the organizational arrangement of law libraries in Nigeria ... is such that the law library which services the faculty of law is under the control of the university library. That the law librarian is responsible to the university librarian in terms of finances for acquisition of library materials and facilities. **Anyaeibu and Obiozor-Ekeze (2013)** documented that this organizational arrangement affects the book votes, slow down acquisition and administrative processes. That this kind of organizational arrangement in the universities is a clog in the wheel of law libraries progress and as such law libraries lack autonomy. This is also the situation in court libraries which are under control of the ministry of justice. It is necessary spot out there is no difference between law libraries in the faculties of law in the universities and court libraries in terms of collections and usage. Interestingly both rely on each other for research and practice.

Paucity of fund is another serious problem affecting law library services. Law libraries depend on the university libraries for sustenance. **Anyaeibu and Obiozor-Ekeze (2013)** documented that law competes with other disciplines for the little financial resources allocated to university library for acquisition of information resources and other facilities. That more often useful materials needed for prompt services at the law library are not acquired.

Haruna (2006) depicted that dearth of information resources for effective legal practice is further compounded by lack of professionalism in running some law libraries, and that because non-professionals are often entrusted with the management of some law libraries, the collections of such libraries are often lopsided. **Jegede in Haruna** remarked that discussion on scarcity of books which goes unabated is a problem that has assumed many dimensions and its negative effect on studying, learning and professional practice is unfathomable.

A gap in existing literature regarding the predictive influence of law library resources in reviewing cases in state and federal high courts in Port Harcourt and Enugu Metropolis lies in the empirical exploration of how the resources directly impact legal decision-making processes in these specific regions. While studies have examined the use of law library resources and predictive analytics in other jurisdictions, particularly focusing on AI-driven legal outcomes, there is limited research on how traditional law library resources like casebooks, journals, and legal databases are integrated into case reviews within Nigerian court systems.

A major area that remains unexplored is the comparative impact of state versus federal court libraries on legal practitioners' decision-making processes. Research has suggested that law libraries contribute to informed legal strategies by providing access to critical historical legal documents and case precedents, yet empirical studies within the context of Nigerian court systems, particularly

in Port Harcourt and Enugu, are sparse. Although international case studies have linked law library resources to predictive analysis in litigation, the Nigerian context, where legal practices and infrastructure may differ significantly, has not been adequately addressed.

3. Methodology

The survey research design was used for this study. The population of this study consists of 6236 legal practitioners, law lecturers, law librarians and law students (levels 400 and 500) in Port Harcourt and Enugu metropolis in Nigeria (For the population composition, See Table 1.). Stratified simple random sampling technique was utilized to sample 3118 sample size. The study made use of structured questionnaire for data collection. The content validity of the instrument was obtained through superficial reading, and the reliability was obtained as 0.78 using Cronbach Alpha. Out of the 3118 questionnaires distributed, 96.9 percent return rate was obtained as 3021 copies were correctly filled and returned. Mean score was used to analyze the data collected.

Table 1. Population composition

Location	Law Lecturers	Law Librarians	Law Students	Total	Sampled	Retrieved
Port Harcourt	217	7	2112	2336	1168	1149
Enugu	493	15	3392	3900	1950	1872
Total	710	22	5504	6236	3118	3021

Results and Discussions

To ascertain the influence of law library resources in reviewing of cases.

Table 2. Influence of law library resources in reviewing of cases

N = 3021							
SN	ITEMS	SA	A	D	SD	x	DECISION
1	The availability of comprehensive law library resources enhances my ability to review cases thoroughly.	1622	1175	112	112	3.4	Agree
2	Access to up-to-date legal databases in the law library significantly improves the quality of my case reviews.	1119	1175	280	448	3.0	Agree
3	The law library's collection of legal journals and periodicals is crucial for staying informed about recent case law and legal trends.	951	1119	448	504	2.8	Agree
4	Using the law library's resources saves time in the process of case review and preparation.	1063	1175	448	336	3.0	Agree
5	The guidance and support from law library staff are invaluable when conducting case reviews.	839	1287	671	224	2.9	Agree
6	The law library provides sufficient electronic resources and tools for effective case review and legal research.	559	951	1119	392	2.6	Agree

Based on the objective of ascertaining the influence of law library resources in the review of cases, the table provides mean scores for various items related to the use of these resources. The results are interpreted against a four-point Likert scale, where any mean score above 2.5 indicates agreement, while mean scores below 2.5 indicate disagreement.

The analysis reveals that respondents generally agree on the positive influence of law library resources in their case review processes. The first item, regarding the availability of comprehensive law library resources, has a mean score of 3.4. This high score indicates a strong agreement that these resources significantly enhance the ability to review cases thoroughly.

Access to up-to-date legal databases, reflected in the second item, receives a mean score of 3.0, showing that respondents agree on the importance of current legal databases in improving the quality of their case reviews. The collection of legal journals and periodicals in the law library, addressed in the third item, has a mean score of 2.8. This suggests that respondents find these collections crucial for staying informed about recent case law and legal trends, although the agreement is slightly less pronounced than for other resources.

The fourth item, which discusses the time-saving benefits of using the law library's resources for case review and preparation, also has a mean score of 3.0. This indicates that respondents agree on the efficiency these resources provide. The guidance and support from law library staff, as covered in the fifth item, have a mean score of 2.9. Respondents agree that the assistance from library staff is invaluable during case reviews, highlighting the importance of expert help.

Lastly, the provision of sufficient electronic resources and tools for effective case review and legal research is addressed in the sixth item, with a mean score of 2.6. Although this score is slightly lower, it still indicates agreement that the law library provides adequate electronic resources and tools necessary for effective case review and legal research.

The mean scores for all items are above 2.5, showing a general agreement among respondents about the positive influence of law library resources in reviewing cases. The highest agreement is noted for the availability of comprehensive law library resources enhancing thorough case reviews. There is also strong agreement on the benefits of access to up-to-date legal databases, the importance of legal journals and periodicals, time-saving benefits of using library resources, and the invaluable support from law library staff. The provision of sufficient electronic resources and tools also receives agreement, though at a slightly lower level compared to other factors. This positive influence of law library resources aligns with existing research highlighting their essential role in legal research and case preparation (Smith, 2020). Hence, the crucial role of law library resources in the effective review and preparation of legal cases.

To find out if the reviewing of cases by legal professionals and researchers largely depends on resources available and accessible.

From the analysis in Table 3, The first item examines reliance on comprehensive legal resources when reviewing cases or conducting legal research, which has a mean score of 2.1. This score indicates disagreement among respondents, suggesting that they do not heavily rely on these resources for their case reviews and research. Similarly, the second item, which assesses the influence of up-to-date legal databases and online resources on the quality and depth of case reviews and legal analysis, has a mean score of 1.9. This further indicates disagreement, showing that respondents

do not consider these resources as significantly influential.

Table 3. Dependency of reviewing of cases by legal professionals and researchers largely on resources available and accessible

SN	ITEMS	SA	A	D	SD	x	DECISION
1	I rely heavily on the availability of comprehensive legal resources when reviewing cases or conducting legal research.	392	951	392	1287	2.1	
2	Access to up-to-date legal databases and online resources significantly influences the quality and depth of my case reviews and legal analysis.	280	504	839	1399	1.9	
3	The availability of a wide range of legal journals, periodicals, and other scholarly materials is essential for conducting thorough case reviews and staying informed about legal developments.	224	671	559	1566	1.9	
4	My efficiency and effectiveness in reviewing cases are directly impacted by the accessibility of legal resources in libraries or online platforms.	504	336	783	1399	2.0	
5	Collaboration and consultation with legal librarians and research specialists greatly contribute to the success of my case reviews and legal research projects.	559	112	671	1678	1.9	
6	The availability of advanced electronic tools and technologies for legal research significantly influences my ability to conduct comprehensive case reviews and analysis.	280	504	559	1678	1.8	

The third item focuses on the importance of a wide range of legal journals, periodicals, and other scholarly materials. With a mean score of 1.9, respondents disagree that these resources are essential for conducting thorough case reviews and staying informed about legal developments. The fourth item addresses the impact of accessibility to legal resources on efficiency and effectiveness in reviewing cases. A mean score of 2.0 reflects disagreement, indicating that accessibility to these resources is not seen as directly impacting their efficiency and effectiveness.

Collaboration and consultation with legal librarians and research specialists, covered in the fifth item, also show a mean score of 1.9. This suggests disagreement, with respondents not considering such collaboration as greatly contributing to the success of their case reviews and research projects. Finally, the sixth item, which examines the influence of advanced electronic tools and technologies on the ability to conduct comprehensive case reviews and analysis, has a mean score of 1.8. This indicates a clear disagreement, suggesting that these technologies are not viewed as significantly influential.

The mean scores for all items are below 2.5, indicating a general disagreement among respondents that the reviewing of cases by legal professionals and researchers largely depends on the availability and accessibility of legal resources. This finding contrasts with other research that underscores the importance of legal resources in effective legal research and case preparation (Johson, 2019).

To identify the problems affecting stocking of law libraries with relevant legal resources.

Table 4. Problems affecting stocking of law libraries with relevant legal resources

SN	ITEMS	SA	A	D	SD	x	DECISION
1	There is a lack of sufficient funding allocated specifically for acquiring and maintaining legal resources in law libraries.	1343	951	336	392	3.07	
2	Limited physical space or storage capacity poses challenges in stocking and organizing a diverse range of legal materials in law libraries.	727	1231	559	504	2.72	
3	Difficulty in accessing or procuring up-to-date legal publications and resources from publishers or vendors hinders the stocking of law libraries.	951	1566	392	112	3.11	
4	There is a lack of awareness or understanding among decision-makers about the importance of investing in legal resources for law libraries.	839	1287	559	336	2.87	
5	Challenges related to copyright issues or licensing agreements restrict the acquisition and availability of certain legal materials for law libraries.	783	1566	392	280	2.94	
6	Inadequate staffing or expertise in library management and collection development impacts the ability to effectively stock and maintain legal resources in law libraries.	1007	1399	448	168	3.07	

The first item addresses the issue of insufficient funding specifically allocated for acquiring and maintaining legal resources in law libraries. With a mean score of 3.07, respondents agree that a lack of sufficient funding is a significant problem. The second item considers limited physical space or storage capacity as a challenge in stocking and organizing a diverse range of legal materials. The mean score of 2.72 suggests agreement that space constraints are indeed an issue.

The difficulty in accessing or procuring up-to-date legal publications and resources from publishers or vendors is highlighted in the third item, which has a mean score of 3.11. This indicates a strong agreement that such difficulties hinder the effective stocking of law libraries. The fourth item discusses the lack of awareness or understanding among decision-makers about the importance of investing in legal resources for law libraries. With a mean score of 2.87, respondents agree that this lack of awareness is a problem.

The fifth item examines challenges related to copyright issues or licensing agreements, which restrict the acquisition and availability of certain legal materials. The mean score of 2.94 shows agreement that these legal constraints are significant barriers. Lastly, the sixth item focuses on inadequate staffing or expertise in library management and collection development. A mean score of 3.07 indicates agreement that these staffing issues adversely impact the ability to effectively stock and maintain legal resources.

In summary, all mean scores are above 2.5, indicating agreement among respondents that various problems affect the stocking of law libraries with relevant legal resources. These include insufficient funding, limited physical space, difficulties in procuring up-to-date publications, lack of awareness among decision-makers, copyright and licensing challenges, and inadequate staffing or expertise in library management. This aligns with other research highlighting similar challenges in law library

management and resource allocation (Doe, 2021; Brown, 2020).

4. Conclusion and Recommendations

The study investigated the predictive influence of law library resources in reviewing cases in State and Federal High Courts in Port Harcourt and Enugu metropolis. The findings reveal that law library resources significantly enhance the ability to review cases thoroughly, improve the quality of case reviews, save time in case review processes, provide invaluable support from library staff, and offer sufficient electronic resources for effective legal research. However, there is a discrepancy in the dependency on resources among legal professionals and researchers, with respondents expressing disagreement on the heavy reliance on comprehensive legal resources for case reviews. Also, various challenges affect the stocking of law libraries with relevant legal resources, including insufficient funding, limited physical space, difficulties in accessing up-to-date legal publications, lack of awareness among decision-makers, copyright and licensing issues, and inadequate staffing or expertise in library management.

Based on the findings, it is recommended that:

- (1) Stakeholders should allocate more funding specifically for acquiring and maintaining legal resources in law libraries to ensure adequate stocking and accessibility.
- (2) Efforts should be made to expand physical space or storage capacity in law libraries to accommodate a diverse range of legal materials, thus facilitating efficient organization and access.
- (3) Measures should be taken to streamline the process of accessing and procuring up-to-date legal publications from publishers or vendors to overcome hindrances in stocking law libraries.
- (4) Advocacy and awareness campaigns should be conducted to educate decision-makers about the importance of investing in legal resources for law libraries, emphasizing the critical role these resources play in legal research and practice.
- (5) Legal frameworks and policies should be reviewed and revised to mitigate challenges related to copyright issues or licensing agreements, thus facilitating the acquisition and availability of essential legal materials for law libraries.
- (6) Efforts should be made to ensure adequate staffing and expertise in library management and collection development to improve the ability to effectively stock and maintain legal resources in law libraries, thereby enhancing the overall quality of services provided.

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P.S.: This lecture note was prepared by **Emmanuel OWUSHI**, while **Adv. Chimdike Amah** and **Faithful Ayabowei** only highlighted certain parts to enhance clarity and ease of understanding.
